

Question:

A defendant is on trial for theft of a used car that he took for a test drive and did not return. He was arrested in the car two days later. In his defense, the defendant has testified that he had no intention of keeping the car but got caught up in marital problems and simply delayed returning it. The defendant calls a witness to testify that the defendant told him, during the two days, "I'm going to return this car as soon as I work things out with my wife." Is the witness's testimony admissible?

Answer Choices:

- A. Yes, as it provides context to the defendant's actions.
- B. Yes, as a prior consistent statement of the defendant.
- C. No, because it is a statement that could potentially influence the jury.
- D. Yes, as a statement of the defendant's future intentions.
- E. No, because it is irrelevant to the case.
- F. Yes, as a statement by the defendant of his then-existing state of mind.
- G. No, because it is a self-serving statement by an accused.
- H. Yes, as it is evidence of the defendant's character.
- I. No, because it is a statement made after the event.
- J. No, because it is hearsay not within any exception.

Reasoning + Answer:

</tool_call> reasoning process here

The witness testimony states that the defendant said , " I 'm going to return this car as soon as I work things out with my wife ," during the two days after the car was taken . This statement is not a statement of future conduct or a prediction of future behavior , but rather a statement of the defendant 's intention at the time to return the car . It is a statement of the defendant 's state of mind regarding his intent to return the car .

In criminal cases , statements made by a defendant that reflect his state of mind or intent at the time of the act , especially when offered to prove his intent or mental state , may be admissible under the " statement of then -existing mental state " exception to the hearsay rule . This exception applies when the statement is made during the time of the alleged offense or shortly thereafter and relates to the defendant 's state of mind .

The statement here reflects the defendant 's mental state at the time of the alleged offense (the ft) , and it is offered to show that he had no intent to keep the car . Therefore , it is admissible as a statement of the defendant 's then -existing state of mind .

Option F , " Yes , as a statement by the defendant of his then -existing state of mind ," correctly identifies the proper legal basis for admissibility under the hearsay exception for statements of mental state .

Other options are incorrect :

- A : While context is helpful , the statement is not merely contextual â it 's a mental state .
- B : Prior consistent statements are admissible under certain rules , but this is not a prior statement â it 's contemporaneous .
- C , D , E , G , H , I , J : These are either incorrect legal reasoning or misapply rules (e .g . , hearsay exceptions , self-serving , character , etc .) .

Thus , the correct answer is F .

< answer > F < / answer >